

2. 9:00 AM CASE NUMBER: L24-02704

CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT (CONTINUED FROM 1/20/26)

FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion, on 12/18/25, to vacate the Default Judgment. The Default Judgment was filed on 9/3/25.

Notice of this Motion was timely filed on Plaintiff.

The Motion is unopposed.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant do not receive actual notice of the process.

Plaintiff filed a proof of service on 5/6/24, reflecting that a process server completed substituted service, on 5/5/24, on a woman at the address that Defendant had apparently used in 2021 (312 N. Wildwood, Hercules), which was reflected on a credit card billing statement attached to the Complaint. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

However, Defendant, in her Motion, declared that she had not been living at the Hercules address in 2024, and provided a utility bill from 2022 and 2023, reflecting an address in Pleasant Hill.

This court finds that the presumption has been rebutted.

Disposition

Defendant's Motion is Granted.

Defendant to file an Answer to the Complaint within 30 days of this Order.

Defendant to file the Order.

3. 9:00 AM CASE NUMBER: L24-07111

CASE NAME: CITIBANK, N.A. VS. DIANA HENDERSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/15/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to Defendant's counsel of record.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/15/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$3,220.78, less any credits for payments received, plus court costs.

Court costs were \$296.02.

Total balance, after credits, is \$3,216.80.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,216.80.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L24-10336

CASE NAME: DISCOVER BANK VS. LAVON BRITT, JR.

***HEARING ON MOTION IN RE:**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 12/12/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$4,289.28, plus